

FILED
SUPREME COURT
STATE OF WASHINGTON
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BY ERIN L. LENNON
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SUPREME COURT NO. 1029501

IN THE COURT OF APPEALS
DIVISION 1
OF THE STATE OF WASHINGTON

ZACKARIAH J. BENNETT,

Petitioner,

and

MELVINA MANNING,

Respondent.

RESPONDENT'S ANSWER
TO MOTION TO STRIKE AND MOTION FOR SANCTIONS

Nancy A. Gass
WSBA No. 49685
Attorney for Respondent

O.W. Hollowell & Associates
P.O. Box 1041
4471 Tolt Avenue
Carnation, WA 98014
(425) 333-4848

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SUPREME COURT OF WASHINGTON

COUNTY OF KING

Petitioner
ZACKARIAH BENNETT

NO. 1029501
COURT OF APPEALS No.
844504-DIVISION 1.

And Respondent
MELVINA MANNING

MELVINA MANNING'S
RESPONSE TO
ZACHARIAH BENNETT'S
MOTION TO STRIKE AND
MOTION FOR SANCTIONS

Comes now **MELVINA MANNING**, by and through her Attorney of Record,
NANCY A. GASS, and responds to **ZACKARIAH BENNETT'S** Motion to
Strike and Motion for sanctions.

RESPONDENT'S OBJECTION TO RELIEF SOUGHT BY APPELLANT

*Manning response to Bennett's Motion to Strike
and Motion for Sanctions Supreme Court Case No.
1029501
Court of Appeals No. 844504-Division 1*

O. W. HOLLOWELL & ASSOCIATES
4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

1 **I. Issues Presented**

2 **A. Bennett Motion to Strike False Statements and Incorporation of New**
3 **Evidence**

4
5
6 **1. Allegedly False Statements**

7 Mr. Bennett seeks to strike allegedly false statements by Melvina
8 Manning in prior filings. Ms. Manning denies making false statements to
9 This Court.

10
11 **2. New Evidence**

12 Mr. Bennett seeks to incorporate what he claims is new evidence that
13 is an email from Ms. Manning's counsel to Mr. Bennett regarding a video
14 recording provided to Mr. Bennett through a Superior Court Case
15 discovery process. *Bennett Motion to strike Ex. A.; King County Superior*
16 *Court cause number 23-2-11352-7 SEA*. This evidence is related to that
17 case and not relevant to this case. However, if The Court wishes to
18 include it in the record, Ms. Manning has no objection.

19
20 **3. Expired Protection Order**

21 Mr. Bennett claims that because Ms. Manning filed a motion for
22 renewal of the Domestic Violence Protection order issued in July 2022
23 the expired order is not moot. *Bennett Motion to Strike at p. 2*. Ms.
24 Manning disagrees. While she did initially file a motion to renew, she
25 chose not to follow through. It was her hope that Mr. Bennett would

1 leave her and her grandson alone once the initial Domestic Violence
2 Protection order expired. Rather than leave her in peace, Mr. Bennett has
3 filed lawsuits, appeals and motions on a regular basis; to the point that
4 Ms. Manning is feeling harassed simply because she sought the courts
5 assistance via protection order.

6
7 B. Bennett Motion for Sanctions

8
9 1. Email From Attorney

10 Mr. Bennett alleges that Attorney Gass's email dated May 20, 2024
11 indicating that Ms. Bennett's security camera automatically deletes
12 recordings after 30 days is "new evidence." *Bennett Motion for*
13 *Sanctions*. It is not clear from his statements what this is "new evidence"
14 of.

15
16 2. New Evidence

17 Mr. Bennett further claims that the above-mentioned email indicating
18 that Ms. Manning made a recording of the video in question on her cell
19 phone is "new evidence." *Id.* Once again, it is not clear what this
20 supposed new evidence proves.

21
22 3. Expired Order

23 As discussed above, Mr. Bennett reiterates his claim that because Ms.
24 Manning filed a Motion for renewal of the Domestic Violence
26

1 Restraining Order, that the order that expired in July 2023 is not Moot.
2 Ms. Manning disagrees.

3
4 4. Civil Rule 11

5 In his argument section, Mr. Bennett cites Washington Civil Rule 11
6 claiming Ms. Manning has made frivolous and fraudulent motions.
7 *Bennett Motion for Sanctions*. Ms. Manning denies this. In actuality,
8 since the DV order has expired, the only motion Ms. Manning has filed is
9 in the Superior Court Case brought against her by Mr. Bennett. All other
10 filings in this matter have been in response to Mr. Bennett's motions and
11 petitions.

12
13 **II. ANALYSIS**

14 A. Allegations of False Statements.

15
16 Ms. Manning denies making false statements. In June of 2022, after Mr.
17 Bennett's unwanted and frightening visit to the Manning residence, Ms.
18 Manning sought a protection order at the behest of her grandson TB.

19
20 Because Mr. Bennett was falsely claiming that he did not approach Ms.
21 Manning's front door, but rather stayed in his vehicle parked on the city
22 street, Ms. Manning felt that she should have evidence showing that Mr.
23 Bennett was not being truthful.
24
26

1 Ms. Manning has a motion detection security camera that captures
2 videos of activity on her front porch area. Ms. Manning is not
3 technologically savvy. In order to preserve the video showing that Mr.
4 Bennett had actually come up on her front porch, she recorded it with the
5 recording function of her cell phone.
6

7
8 The Court hearing her petition for a protection order chose not to review
9 the video and it was never entered into evidence, despite Mr. Bennett's
10 requests to the contrary.
11

12 The video of Mr. Bennett on the porch of the Manning residence is still
13 preserved. Mr. Bennett requested said video in a discovery request related to
14 his Superior Court suit against Ms. Manning. *Ex. A*. The video was provided
15 timely to Mr. Bennett via email from Attorney Gass. *Ex. B*.
16

17 Ms. Manning preserved the video of Mr. Bennett on her front porch as
18 she claimed in her filing with This Court. Ms. Manning did not make false
19 statements to The Court.
20

21
22 1. Alleged New Evidence

23 As discussed above, the email that Mr. Bennett is seeking to put into
24 evidence is an email in response to discovery issues in a Superior Court
26

1 Case. *Supra*. Ms. Manning does not see how it is relevant to Mr. Bennett's
2 Petition to Review an Appeals Court Decision. However, if This Court finds
3 it relevant, Ms. Manning has no objection to it becoming part of the record.
4

5
6 2. Expired Order

7 Mr. Bennett argues that because Ms. Manning was considering asking
8 the court to renew the Domestic Violence Protection order, the expired
9 order was not moot when he sought an appeal of the expired order.
10

11 Ms. Manning did file a motion to renew the Domestic Violence
12 Protection Order. However, she did not follow through with that Motion and
13 let the DV order expire after the year was up.
14

15 Mr. Bennett fails to explain why her initial consideration regarding
16 renewal of the order in question makes it not moot when he filed an appeal
17 after the order has been allowed to expire.
18

19
20 3. Security Camera Auto Delete.

21 It is not clear what Mr. Bennett's point is on this. Most home use
22 security camera's auto delete recordings on a regular basis. Ms. Manning's
23 happens to delete recordings after 30 days. Ms. Manning preserved the
24 video of Mr. Bennett on her porch in the only way she knew how; she
26

1 recorded it on her cell phone. In this way, she would have it with her in case
2 the judge hearing the DV matter wanted to review it. It has to date, never
3 been entered into evidence in any of the court filings Mr. Bennett has made;
4 either with This Court, the Court of Appeals, or the Superior Court.
5

6 If This Court would like to review the video, Ms. Manning is happy to
7 provide it to The Court through her attorney.
8

9
10 4. Washington Civil Rule 11 Arguments by Bennett.

11 Mr. Bennett claims that Ms. Manning has filed frivolous and fraudulent
12 motions. In reality, Ms. Manning has not filed any motions in the matter
13 before This Court. She has simply responded to his ongoing filings. If
14 anything, Ms. Manning is being harassed by Mr. Bennett with his constant
15 filing of briefs and motions both in This Court and the appeals court. It is
16 causing Ms. Manning great distress and is a financial burden on her.
17

18 Mr. Bennett claims that Ms. Manning's conduct has prejudiced him and
19 undermined the integrity of the Judicial Process. Ms. Manning provided the
20 only recording she has of Mr. Bennett on her front porch on June 12, 2022;
21 the incident that prompted Ms. Manning to seek a protection order for
22 herself and her grandson.
23
24
26

1 Mr. Bennett has not denied that the video shows him on Ms. Mannings
2 porch, consequently it is unclear how he claims to be prejudiced or what the
3 undue burden is that has been placed on him.
4
5
6

7 **III. CONCLUSION**

8 Ms. Manning respectfully requests The Court dismiss both of Mr.
9 Bennett's motions in this case. He provides no clear reasoning as to what
10 Ms. Manning did wrong or how he was overly burdened or prejudiced.
11

12 Ms. Manning sought judicial intervention to protect herself and her
13 grandson from Mr. Bennetts threats and harassment. The court agreed with
14 Ms. Manning and issued an order protecting her and her grandson. Since the
15 order expired, Mr. Bennett has been filing Petitions and Motions constantly
16 in just about every court available to him.
17
18

19 Ms. Manning is the one overly burdened by Mr. Bennett's constant and
20 ongoing filing of Petitions and Motions.
21

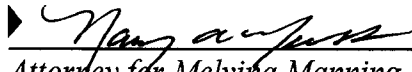
22 She preserved the video that Mr. Bennett sought in the only way she
23 knew how. She provided it to him through normal discovery in the superior
24 court case Apparently, he does not like the story that video shows and thus
25
26

has decided Ms. Manning did something nefarious but does not explain what; just that he does not like it.

Mr. Bennett has suffered no burdens not brought on by his bad behavior.

Citizens that feel the need for judicial intervention in order to protect themselves and their loved ones from frightening and harassing behavior should not be burdened with ongoing litigation just because the restrained person is mad that their behavior has been curtailed.

I certify that this brief contains 1433 words in compliance with RAP 18.17(c)(1).

	<u>Nancy A. Gass WSBA # 49685</u>	<u>6/21/24</u>
<i>Attorney for Melvina Manning</i>	<i>Print name and WSBA No.</i>	<i>Date</i>

<u>P.O. Box 1041; 4471 Tolt Ave</u>	<u>Carnation</u>	<u>WA</u>	<u>98014</u>
<i>Lawyer's address</i>	<i>City</i>	<i>State</i>	<i>Zip</i>

Email (if applicable): carnationlaw@comcast.net

EXHIBIT A

EXCERPT FROM BENNETT INTERROGATORIES AND
REQUEST FOR PRODUCTION

1
2 OATH

3 Your answers to these interrogatories must be made under oath, dated, and signed.

4 INTERROGATORIES AND REQUESTS FOR PRODUCTION

5
6 * 1. Produce all documents (security footage, audio/video recordings, etc) that did or reasonably could have *
7 (unprivileged) written
8 communication regarding the visit. Especially important is the doorbell camera, and anything covering the front
9 yard, driveway, and front door.

10 2. Produce all of the documents in and or related to Snohomish County cause# 13-5-00050-3

11 3. (a) Produce a disclosure consent form authorizing Rebecca Mallos to speak to me about TB on matters
12 regarding myself, the background history she was given, reunification, etc - as I've never been authorized for
13 disclosure.

14 -- OR --

15 (b) Produce copies of all Rebecca Mallos' documents concerning myself and/or my relationship (or lack
16 thereof) with TB, with highest priority being what Melvina has said about myself, as well as about TB's
17 background; and what TB has said in regards me.

18 4. Produce all medical records for TB from 03/04/2008 - 03/08/2013, with priority on records and clinical notes
19 from 03/04/2008 - 08/16/2008.

20 5. Produce photos of TB from 03/04/2008 - 08/16/2008. (Enough to reasonably establish an idea of his relative
well-being when viewed along side of the photos I have of the months before he left).

6. In 2008 you alleged: *"Willful abandonment that continues for an extended period of time or substantial
refusal to perform parenting functions."*¹ Defined in RCW 13.34.030(1) *"Abandoned" means when the child's
parent, guardian, or other custodian has expressed, either by statement or conduct, an intent to forego, for an
extended period, parental rights or responsibilities despite an ability to exercise such rights and
responsibilities."*² If this was your intended allegation, please provide the specific facts upon which the
allegation is based. If it was NOT intended, please retract, correct, or clarify below.

7. In 2008 you alleged: *"A history of acts of domestic violence as defined in RCW 26.50.010(1) or an assault or
sexual assault which causes grievous bodily harm or the fear of such harm."* Please provide the aforementioned
"history" you were referencing, or please retract, correct, or clarify below.

¹ 12/05/2008 FNFL page-4 part 2.9

² RCW 13.34.030(1)

EXHIBIT B

EMAIL TO MR. BENNETT DELIVERY PORCH VIDEO

Tolt Law dba OW Hollowell & Associates <carnationlaw@comcast.net>

5/17/2024 11:18 AM

Discovery - Porch video

To Rev. Bennett <zackjbennett@gmail.com>

Attached is the video you requested in your discovery.

The rest of the answers will go out in today's mail.

Nancy Gass
Attorney at Law
O.W. Hollowell & Associates
4471 Tolt Avenue
P.O. Box 1041
Carnation, WA 98014
Tel: (425) 333-4848
Fax: (425) 333-4884

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- Manning, Porch video.mp4 (1 MB)

O.W. HOLLOWELL & ASSOCIATES

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Transmittal Information

Filed with Court: Supreme Court
Appellate Court Case Number: 102,950-1
Appellate Court Case Title: Melvina Manning v. Zackariah Jeremiah Bennett

The following documents have been uploaded:

- 1029501_Answer_Reply_20240621133604SC578370_5273.pdf
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